

GZ: 2021-0.512.929 dated January 17, 2022 (Case Number: DSB-D124.4064)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent company has not been pseudonymized here, as it can be derived from the law according to § 3 Z 3 PBVG. A meaningful pseudonymization was therefore not possible. The confidentiality interest of the respondent, a legal entity, does not outweigh the public interest in the legally mandated publication of the decision according to § 23 Abs. 2 DSG.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of Mag. Michael A*** (complainant) dated May 6, 2021 against A1 Telekom Austria AG (respondent) regarding the violation of the right to confidentiality as follows:

1. The complaint is partially upheld, and it is established that the respondent has violated the complainant's right to confidentiality by transmitting the complainant's personal data to the central committee of the respondent on a monthly basis.
2. The complaint is dismissed in all other respects.

Legal bases: Art. 6, Art. 51 Abs. 1, Art. 57 Abs. 1 lit. f, and Art. 77 Abs. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 Abs. 1, and 24 Abs. 1 and Abs. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 89 of the Federal Act of December 14, 1973 concerning the Labor Constitution (Labor Constitution Act – ArbVG), Federal Law Gazette No. 22/1974 as amended; §§ 3, 9, 72, 73, and 74 of the Federal Act on Postal Business Constitution (Postal Business Constitution Act – PBVG).

REASONING

A. Submissions of the Parties and Procedural History

1.

In his submission dated May 6, 2021, to the Data Protection Authority, the complainant essentially stated that the respondent had transmitted his personnel file data as per § 89 Z 4 ArbVG, which may only be accessed by the works council with the consent of the affected employee, to the central committee (central works council) of the respondent on a monthly basis and without a specific reason or purpose. Consent from the complainant had not been obtained. The central committee was not competent for individual cases according to § 73 PBVG. Furthermore, the personnel representation bodies would gain direct access to parts of the personnel management system SAP.

2.

The respondent replied with a statement dated June 18, 2021, summarizing that the Central Committee is democratically legitimized to exercise the powers regulated in the PBVG and ArbVG and also acts as the central point of contact for the respondent regarding all participation rights and tasks of the employee representation. The transmission of the personal data of the complainant to the Central Committee is necessary for the exercise of the multitude of statutory participation rights by the employee representation and is covered by the PBVG as well as the ArbVG, particularly in § 89 ArbVG.

All employees of the respondent have been informed about the transmission of personal data to the employee representation, and the claim of the employee representation for transmission has already been provided for in the standard application 002 ("SA002") of the Standard and Model Regulation 2004. Furthermore, there is a supervisory right of the Central Committee under § 89 ArbVG regarding compliance with all norms affecting employees, which can be exercised continuously in the sense of preventive control without a specific cause. In this context, the Central Committee is entitled to inspect the records kept about the employees' remuneration and the documents required for the calculation of this remuneration (§ 89 Z 1 ArbVG). This includes all "records" concerning the employees, the maintenance of which is normatively established, and also voluntarily maintained records, insofar as

this is necessary for the exercise of the supervisory right. These supervisory rights would require the Central Committee to have access to the relevant records. The respondent must therefore present these records accordingly to the Central Committee, and there exists a corresponding obligation to transmit on the part of the respondent. Consent from the complainant is not required for this. The Central Committee must also monitor compliance with the works agreement concerning the complainant. This supervisory right is established in § 89 Z 2 ArbVG, and the transmission of the employee data necessary for this control to exercise the participation rights of the Central Committee is necessary and thus also legally permissible under data protection law.

The transmission of the complainant's personal data for the exercise of works constitution law powers of the employee representation under ArbVG is therefore justified, in particular, based on Art. 6 para. 1 lit. c (fulfillment of a legal obligation), lit. e (performance of tasks in the public interest), or lit. f (safeguarding the legitimate interests of the controller or a third party) as well as Art. 9 para. 2 lit. b GDPR (exercise of rights arising from labor law or fulfillment of related obligations). The legal obligation lies in enabling the democratically legitimized employee representation to exercise its statutory participation rights. The transmission is also limited to what is necessary. All transmitted data are necessary for the exercise of participation rights, particularly the supervisory right by the employee representation.

****A. Legal Argumentation****

If the complainant refers to the access of the staff representation bodies to parts of the personnel management system SAP, it should be noted that only an alleged potential threat is claimed, but not a concrete violation of rights. Furthermore, no specific access has been asserted; any access would be justified based on the aforementioned provisions.

3. The complainant responded with a statement dated July 15, 2021, summarizing that the norms of the ArbVG (Labor Constitution Act) and PBVG (Public Sector Labor Relations Act) have absolutely binding effect, so they cannot be expanded. If the ArbVG speaks of "works council," this refers to the body competent according to the delineation of competencies pursuant to §§ 114f ArbVG and §§ 73f PBVG. The rights of participation under labor constitution law therefore do not apply to all bodies of staff representation. The fact that the central committee acts as the "central contact" for the respondent regarding all rights and tasks of staff representation is thus in stark contrast to the wording of the law. In particular, the central committee does not have the task or the right to receive, manage, and distribute personal data that it is not entitled to due to a lack of its own jurisdiction. The transmission of his personal data to the central committee is therefore already unlawful due to the lack of legal jurisdiction of this body and thus a lack of justification for the transmission.

Moreover, the fact that the transmission of personal employee data to works council bodies is not seen as posing a high risk under Art. 35 para. 1 GDPR for the rights and freedoms of natural persons does not allow for a conclusion—contrary to the respondent's assertion—about the fundamental legality of this transmission. This must rather be assessed on a case-by-case basis according to Arts. 5 and 6 GDPR. The complainant also cannot recall having received a data protection declaration regarding the transmission of data to the staff representation for information, as claimed by the respondent. Regardless, this declaration is extremely vague and incomplete.

If the (competent) staff body is to be granted access to the necessary documents, this does not constitute a legal obligation for the respondent to periodically transmit personal employee data of all employees on its own initiative and without a specific request from the respective staff body. Such a legal obligation does not exist.

It is also noteworthy that the respondent does not comment on the transmission of the personal user ID. The fact that the respondent makes this user ID generally accessible in the intranet cannot justify the transmission of this data to bodies of staff representation, collected in an Excel list. Furthermore, the alleged necessity of transmitting the date of birth, social security number, and private registration address for compliance with legal provisions is not given. The mentioned personal data are also data from the personnel file, which may only be viewed by the staff representation with the consent of the affected employee according to § 89 Z 4 ArbVG. However, this consent was never obtained.

Furthermore, the personal data were apparently transmitted in an unencrypted Excel list, which also led to the sharing with staff representation bodies that are not even regionally competent and, beyond that, to the sharing with political factions, which have no corresponding rights of the workforce. This is in contradiction to Art. 5 para. 1 lit. f GDPR.

In addition, direct access to the personnel management system SAP is granted to the central committee, and it should be noted that such direct and permanent access is disproportionate and therefore unlawful, as it cannot be ensured that only relevant (and covered by a right of access or oversight) data will actually be transmitted. This constitutes, contrary to the respondent's view, a violation of the principles of data protection law even if access is only enabled to an unauthorized person and not actually carried out.

In summary, it should be noted that the rights to the transmission of personal data of employees claimed by the central committee are neither justified in content nor in scope, and the corresponding legal regulations on the delineation of competencies are unambiguous. Consequently, the respondent has no legal obligation to transmit the contested data (or to grant access to the personnel data system), and this is therefore unlawful under data protection law due to the lack of fulfillment of any other justification.

****B. Subject of the Complaint****

Based on the complainant's submissions, the subject of the complaint is the question of whether the respondent has violated the complainant's right to confidentiality by transmitting personal data of the complainant monthly to the central committee of the respondent and granting the central committee direct access to parts of the personnel management system SAP.

****C. Findings of Fact****

At the time of the submission of the complaint, the complainant was an employee of the respondent. The Central Committee is a personnel representation body established at the respondent in accordance with §§ 9 in conjunction with 21 PBVG. Additionally, several personnel committees and numerous trust committees have been established at the respondent. The respondent transmitted the following data of the complainant to the Central Committee on a monthly basis:

[Note from the editor: The table containing the complainant's data, presented here as a graphic file, cannot be pseudonymized with reasonable effort and has therefore been removed. It has been reconstructed as a table (graphic resolution not suitable for OCR), and the layout only approximately corresponds to the original.]

Employee

*5*4*1

Last Name

A***

First Name

Michael

Title

Mag.

Employee Group

Employee Circle

Ang. TK-KV ([illegible])

Contract Type

permanent

Gender

male

Start Date

..2015

User ID

**4P*3*O*

Email Address

Michael.A***@a1.at

Location - Federal State

AT/**

Location - Postal Code

Location - City

N***

Location - Street

B***straße *8

Company

A1 Telekom Austria AG

Executive Area

Department

Not assigned

Main Department

Not assigned

Division

Group

Team

Not assigned

Organizational Unit

*1*2*3*

OrgEh (short)

0*t*R*4*

OE Type

GR

DiS

Not assigned

Staff

Not assigned

PT/DZ/KV service

TK/S/F

PT/DZ/KV salary

TK/S/F

Employment Status

active

Time Model

Flexible time

Overtime Eligible

No

Weekly Hours according to VE

40

Date of Birth

**.*.1990

Registration - Federal State

AT/**

Registration - Postal Code

Registration - City

L ***

Registration - Street

J***platz *45

Counter

Furthermore, the complainant's social security number was also transmitted to the Central Committee on a monthly basis. Since the complainant had already highlighted the social security number and the private registration address as particularly sensitive to the respondent prior to the present complaint, the respondent had already ceased the transmission of the complainant's social security number and private address to the Central Committee before the complaint was received.

Evidence Assessment: The findings are based on the consistent submissions of the parties, particularly the statement provided by the respondent in the present proceedings, as well as in the proceedings D124.4069, which contains the established table.

The Central Committee did not actively request the complainant's data in the exercise of its powers.

Evidence Assessment: The finding is based on the submissions of the complainant and the statement of the respondent, from which a proactive transmission of the data by the respondent is derived.

The Central Committee also receives direct access from the respondent to parts of the personnel management system SAP. No access to the complainant's data has occurred due to the granted access.

Evidence Assessment: The findings are based on the consistent submissions of the parties. The finding that there was no unlawful access by the Central Committee and no corresponding disclosure of the complainant's data is based on the fact that such was not claimed by the complainant and could not be derived from the documents submitted by the parties to the proceedings. As the VwGH states, in the case of non-establishment, it must be assumed that the fact does not exist (VwGH of June 16, 1992, ZI. 92/08/0062).

D. Legally, it follows:

D.1. Regarding the transmission to the Central Committee:

According to § 1 para. 1 DSG, everyone has the right to confidentiality of personal data concerning them, as long as there is a legitimate interest in it. The existence of such an interest is excluded if data, due to their general availability or because of their lack of traceability to the affected person, are not subject to a confidentiality claim.

The GDPR and, in particular, the principles enshrined therein must be taken into account in the interpretation of the right to confidentiality (see the decision of the DSB of October 31, 2018, GZ: DSB-D123.076/0003-DSB/2018).

In the present case, the scope of application of § 1 para. 1 DSG is opened, as the established information clearly relates to the complainant according to Art. 4 No. 1 GDPR.

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG if personal data are used in the vital interest of the affected person, if the affected person has given their consent (or in the terminology of the GDPR: approval), if there is a qualified legal basis for the use, or if the use is justified by overriding legitimate interests of a third party.

Based on the subject of the complaint, the question arises as to whether the respondent unlawfully transmitted the complainant's personal data to the Central Committee on a monthly basis.

The use of the data in question is not in the vital interest of the complainant, nor has their consent been given.

complainant's representative committee (Z 4), and the works council (Z 5), responsible for monitoring compliance with the provisions of the PBVG and the relevant collective agreements.

The complainant's representative committee has the right to receive information from the management regarding the implementation of the provisions of the PBVG and to participate in discussions regarding the establishment and amendment of company agreements.

In summary, the complainant's representative committee has the authority to oversee the compliance with the provisions of the PBVG, as well as the rights and obligations arising from the employment relationship, and to ensure that the interests of the employees are adequately represented.

In light of the above, the complainant's representative committee asserts that the data transmission in question is justified under the relevant legal frameworks, specifically citing the provisions of the ArbVG and PBVG, as well as the GDPR. However, the arguments presented by the complainant's representative committee do not sufficiently justify the data transmission in question, as outlined in the following points:

1. The monitoring rights under § 89 ArbVG do not extend to the data transmission in question, as the specific purpose and necessity of such transmission have not been adequately demonstrated.
2. The provisions of the PBVG do not provide a blanket justification for data transmission without the explicit consent of the employees involved, particularly in light of the requirements set forth in the GDPR.
3. The legal basis for the data transmission must be clearly established, and the complainant's representative committee has failed to provide sufficient evidence to support its claims regarding compliance with the GDPR.

In conclusion, the arguments presented by the complainant's representative committee do not adequately support the legality of the data transmission in question, and therefore, the data transfer cannot be justified under the cited legal provisions.

Personal Representative Assembly (Z 5), Election Committees (Z 6), and the Auditor (Z 7) of one of the employee representation bodies.

§ 72 PBVG regulates the powers of the employees and states in its paragraph 1 that the 3rd main part of the II. section applies, with the exception of §§ 113 and 114, the sections 2 and 3 of the 1st main part of the III. section, as well as § 159 ArbVG. This also includes § 89 ArbVG, on which the respondent relies.

It should be noted that the addressee of the participation rights under § 89 ArbVG is only the respective competent works council (cf. Drs in Strasser/Jabornegg/Resch, ArbVG § 89 (as of 1.9.2015, rdb.at), Rz 6; as well as Kallab in Neumayr/Reissner, ZellKomm3 § 113 ArbVG, Rz 2).

§ 73 PBVG provides for a corresponding delineation of competencies of the employee representation bodies and reads, including the heading, as follows (emphasis by the Data Protection Authority):

Delineation of Competencies

§ 73. (1) The powers belonging to the employees shall be exercised, unless otherwise specified, by personnel committees. If such are not established, the powers shall be exercised by the trust committee.

(2) In companies where a central committee is established, the following powers shall be exercised by it:

1. Participation in economic matters in accordance with §§ 110 to 112 ArbVG;
2. Conclusion, amendment, and termination of works agreements, unless otherwise specified in Z 6;
3. Measures requiring consent (§ 96 ArbVG);
4. Measures with replaceable consent (§ 96a ArbVG);
5. Participation in the determination of performance remuneration in individual cases (§ 100 ArbVG);
6. As far as they do not only affect the interests of the employees within the scope of a personnel committee or a company
 - a) Right to intervene (§ 90 ArbVG);
 - b) General right to information (§ 91 ArbVG);
 - c) Right to consultation (§ 92 ArbVG);
 - d) Participation in occupational safety matters (§ 92a ArbVG);
 - e) Establishment and management of employee welfare facilities (§ 93 ArbVG);
 - f) Participation in company and enterprise-owned training, education, and welfare facilities (§§ 94 and 95 ArbVG);

- g) Economic information and intervention rights (§ 108 ArbVG);
 - h) Participation in operational changes in accordance with § 109 ArbVG;
 - i) Conclusion, amendment, and termination of works agreements according to § 97 Abs. 1 Z 2, 6, 7, 15 ArbVG;
 - j) Personal information right (§ 98 ArbVG);
 - k) Hiring of employees (§ 99 ArbVG);
 - l) Participation in transfers (§ 101 ArbVG);
 - m) Participation in construction measures and acquisitions (§ 72 Abs. 2);
 - n) Participation in measures according to § 72 Abs. 3.
7. Exercise of rights according to § 89 Z 3 ArbVG regarding planned and under construction operational facilities of the company for which no organ of employee representation is yet responsible.
- (3) § 113 Abs. 5 ArbVG applies accordingly.

Here, § 73 Abs. 2 [Note by the editor: in the original due to an obvious editorial oversight: Abs. 3] PBVG regulates the powers of the central committee in a taxative listing, whereby only in Z 7 leg. cit. is reference made to the provision of § 89 ArbVG invoked by the respondent. The central committee is therefore only exceptionally competent for the supervisory rights of § 89 ArbVG, namely only in the case of § 73 Abs. 2 Z 7 PBVG, which is not applicable in the present case (cf. also analogously Drs in Strasser/Jabornegg/Resch, ArbVG § 89 (as of 1.9.2015, rdb.at), Rz 11).

As a general clause, the personnel committees are primarily responsible for the powers belonging to the employees in accordance with § 72 PBVG, and secondarily the trust committee.

As established, both the central committee and personnel committees, as well as trust committees, are established at the respondent.

The supervisory powers belonging to the works council according to § 89 ArbVG therefore fall – with the exception of Z 3 leg. cit., regarding planned and under construction operational facilities of the company for which no organ of employee representation is yet responsible (cf. § 73 Abs. 2 Z 7 PBVG) – under the jurisdiction of the personnel committees. A jurisdiction of the central committee is not provided for this in the PBVG.

This also aligns with § 74 PBVG, which provides for a transfer of competencies from the personnel committee to the trust committee and from the central committee to the personnel committee, but does not provide for such a transfer from the personnel committee to the central committee, which was also not claimed.

The transmission of the personal data of the complainant therefore occurred by the respondent to an incompetent employee representation body.

Furthermore, while § 89 ArbVG does provide for supervisory and control powers of the works council, it does not simultaneously establish a legal basis for the proactive and periodic transmission of employee data by the employer. To make use of the powers of § 89 ArbVG, the respective competent works council would have to take action itself and, for example, request employee data, which, as established, did not occur in this case and was also not claimed by the respondent.

In conclusion, it should therefore be noted that the respondent transmitted the personal data of the complainant to an incompetent employee representation body without a qualified legal basis, and no legitimate interests for such a transmission are recognizable, especially since – as established – personnel committees are also present at the

Respondent

established

are.

The

data processing in question

is thus

unlawful.

To the extent that the

respondent (implicitly)

claims that the Data Protection Impact Assessment Exceptions Regulation (DSFA-AV) declares the

data processing in question to be compliant with the GDPR, it should be noted that the Data Protection Impact Assessment Exceptions Regulation (DSFA-AV) does exempt certain data processing activities from the requirement to conduct a Data Protection Impact Assessment in accordance with Art. 35 para. 1 GDPR, but it does not, however, serve as a legal basis for data processing in the sense of Art. 6 or Art. 9 GDPR, let alone replace such a legal basis.

There is therefore a violation of the complainant's right to confidentiality, which is why the complaint should be upheld accordingly.

D.2. Regarding access to the personnel management system:

As established, there was no unlawful access to the complainant's data in the personnel management system SAP, and such access was not claimed by the complainant either.

A violation of the fundamental right to confidentiality can, however, only be determined from an ex-post perspective based on the circumstances relevant to the complaint. This means that a complaint regarding violations that have either not yet manifested or that could merely possibly occur must be denied due to lack of standing to complain (cf. the decision of the DSB dated September 13, 2018, GZ: DSB-D123.070/0005-DSB/2018).

It was therefore to be decided accordingly.